

our prior cases—requires an adjustment of the “good faith” standard established by our decisions.

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Qualified or “good faith” immunity is an affirmative defense that must be pleaded by a defendant official. *Gomez v. Toledo*, 446 U. S. 635 (1980).²⁴ Decisions of this Court have established that the “good faith” defense has both an “objective” and a “subjective” aspect. The objective element involves a presumptive knowledge of and respect for “basic, unquestioned constitutional rights.” *Wood v. Strickland*, 420 U. S. 308, 322 (1975). The subjective component refers to “permissible intentions.” *Ibid.* Characteristically the Court has defined these elements by identifying the circumstances in which qualified immunity would *not* be available. Referring both to the objective and subjective elements, we have held that qualified immunity would be defeated if an official “*knew or reasonably should have known* that the action he took within his sphere of official responsibility would violate the constitutional rights of the [plaintiff], *or if he took the action with the malicious intention* to cause a deprivation of constitutional rights or other injury” *Ibid.* (emphasis added).²⁵

The subjective element of the good-faith defense frequently has proved incompatible with our admonition in *Butz*

²⁴ Although *Gomez* presented the question in the context of an action under 42 U. S. C. § 1983, the Court’s analysis indicates that “immunity” must also be pleaded as a defense in actions under the Constitution and laws of the United States. See 446 U. S., at 640. *Gomez* did not decide which party bore the burden of proof on the issue of good faith. *Id.*, at 642 (REHNQUIST, J., concurring).

²⁵ In *Wood* the Court explicitly limited its holding to the circumstances in which a school board member, “in the specific context of school discipline,” 420 U. S., at 322, would be stripped of claimed immunity in an action under § 1983. Subsequent cases, however, have quoted the *Wood* formulation as a general statement of the qualified immunity standard. See, e. g., *Procunier v. Navarette*, 434 U. S. 555, 562–563, 566 (1978), quoted in *Baker v. McCollan*, 443 U. S. 137, 139 (1979).